

	26-1550967	Defendants) regarding allegations in the Complaint filed by plaintiff Michael Jordan Jr. McQuade (Plaintiff). As set forth more fully below, the motion is GRANTED, in part, and DENIED, in part. The court may strike out any irrelevant, false or improper matter asserted in any pleading. (<i>Code of Civ. Proc. § 436, subd. (a).</i>) A motion to strike is the proper vehicle to attack a claim for punitive damages. (<i>Code of Civ. Proc. §§ 435-436; Truman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (<i>Civ. Code § 3294, subd. (a).</i>) <u>Allegations against City:</u> Plaintiff does not oppose the motion to strike punitive damages and references to "age" in paragraph 149 of the Complaint. The motion is therefore GRANTED as to these allegations against the City. <u>Allegations against Cherene:</u> In addition to any other available remedy, an individual can be held personally liable for harassing another employee in violation of California Fair Employment and Housing Act (FEHA). (<i>Gov. Code § 12940, subd. (j)(3); McClung v. Employment Develop. Dept.</i> (2004) 34 Cal.4th 467, 475.) Punitive damages may be awarded in civil actions for FEHA violations. (<i>Commodore Home Systems, Inc. v. Sup. (Brown)</i>(1982) 32 Cal.3d 211, 221; <i>Myers v. Trendwest Resorts, Inc.</i> (2007) 148 Cal.App.4th 1403, 1435-1436; see e.g. <i>Weeks v. Baker & McKenzie</i> (1998) 63 Cal.App.4th 1128, 1137, 1167 [affirming award of punitive damages against individual for sexual harassment].) Here, Plaintiff alleges Cherene was his direct supervisor and subjected him to harassment throughout his employment, including making derogatory remarks and criticizing his speech related to his disability. (Compl. ¶¶ 14-24.) The Court finds the allegations are sufficient to support malice and/or oppression. The motion is therefore DENIED as to punitive damages alleged against Cherene. <i>Defendants shall provide notice of this ruling.</i>
11.	Potter v. Gustafson 26-1554580	The recommended ruling will not be posted. Parties are to appear before the court to discuss the alleged failure of defendant Dicker & Dicker, LLP ("Firm") to serve the pending special motion to strike ("Motion") on plaintiff Jeffrey Potter ("Plaintiff"). Plaintiff will be given the opportunity to continue the hearing to August 20, 2026, to allow additional time to prepare an opposition. If Plaintiff wishes to proceed on the merits, the court will then provide its tentative ruling.
12.	Victory Live, Inc, v. Kai Sports and Entertainment Corp. 25-1512515	<i>(Dismissed)</i>
13.	Zamora v. General Motors, LLC	Before the Court is a motion for summary judgment, or summary adjudication in the alternative, filed by defendant General Motors, LLC

	24-1399944	(Defendant) on the complaint of plaintiff Jorge A. Zamora (Plaintiff). For the reasons set forth below the motion for summary judgment is GRANTED. <u>Timeliness</u>: The court rejects Plaintiff's argument that the motion is untimely. A motion for summary judgment must be "heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (<i>Code of Civ. Proc. § 473, subd. (a)(3)</i>.) The 30-day cut-off is measured from the trial date in effect when the summary judgment motion is made. Thus, a continuance of the initial trial date "reopens" the time for such motions. (<i>Green v. Bristol Myers Co.</i> (1988) 206 Cal.App.3d 604, 609; <i>Soderberg v. McKinney</i> (1996) 44 Cal.App.4th 1760, 1765, fn. 4.) Although Defendant's motion was filed three days before the then-scheduled trial date, the trial date was continued several times and ultimately taken off calendar. On March 4, 2026, Defendant re-noticed the motion for summary judgment/adjudication to July 30, 2026. (ROA 132, 137.) There being no trial date, the motion is timely. <u>Song Beverly Act claims</u> (1st through 4th causes of action): The Song Beverly Consumer Warranty Act, <i>Civ. Code § 1790 et. seq.</i>, does not apply to vehicles purchased or leased outside of California. (<i>Cummins, Inc. v. Superior Court</i> (2005) 36 Cal.4th 478, 487-90; <i>Davis v. Newmar Corp.</i> (2006) 136 Cal.App.4th 275, 278.) Defendant produced undisputed evidence Plaintiff purchased the subject vehicle in Texas, registered the vehicle in Texas and presented the vehicle for repair in Texas. (Defendant's Separate Statement of Undisputed Material Facts 1-7.) Defendants met its initial burden to show that Plaintiff cannot establish his causes of action under the Song Beverly Act. Plaintiff failed to meet his shifted burden showing a triable issue of fact. The motion is therefore GRANTED as to these claims. <u>Magnuson-Moss claim</u> (5th cause of action): The failure to state a warranty claim under state law constitutes the failure to state a claim under Magnuson-Moss Warranty Act, <i>15 U.S. § 2301 et. seq.</i> (<i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144 Cal.App.4th 824, 832-833; <i>West v. Rheem Manufacturing Company</i> (C.D. Cal. 2025) 765 F.Supp.3d 976, 990.) This claim fails because Plaintiff's Song Beverly Act claims fail. The motion is therefore GRANTED as to this claim. <i>Counsel for Defendant shall provide notice of this ruling.</i>
14.	Hammouri v. Ford Motor Company 23-1335621	The "Motion for Summary Judgment" filed on 6/23/25 by Defendant Ford Motor Company ("Ford") is DENIED. The hearing on the Motion was continued pursuant to a stipulation, and then upon an <i>ex parte</i> application by Plaintiff Nahed Hammouri ("Plaintiff"). It was then continued as both sides failed to e-file the unredacted versions of their papers. Yet despite the Court's 7/6/26 Order specifically directing both sides to promptly e-file [conditionally